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Sunil Kumar And Another v. Ram Parkash And Others

Supreme Court Of India (Jan 13, 1988)

CASE NO.

Civil Appeal No. 1576 of 1987, decided on January 13, 1988

DISPOSITION

DISMISSED

JUDGES

- B.C Ray
- K. Jagannatha Shetty, JJ.

ATTORNEY

- H.N Salve, R.K Garg and N.D Garg, Advocates, for the Appellants;
- T.U Mehta, Senior Advocate (G.K Bansal, Advocate, with him) for the Respondents.

SUMMARY

Factual and Procedural Background

Ram Parkash, acting as the *karta* of a Mitakshara joint Hindu family, agreed on 7 February 1978 to sell house *property* (M.C.K No. 238/9, Mohalla Qanungaon, Kaithal) to Jai Bhagwan for ₹21,400 and accepted ₹5,000 as earnest money. When Ram Parkash refused to execute the sale deed, Jai Bhagwan filed Suit No. 570/1978 for specific performance, alternatively seeking ₹10,000 in damages.

The three sons of Ram Parkash (appellants) unsuccessfully sought to be impleaded in that specific-performance suit. They then instituted Civil Suit No. 31/1982 for a permanent injunction restraining their father from completing the sale and restraining Jai Bhagwan from prosecuting the pending specific-performance action, alleging that the house was joint family coparcenary *property* and that no legal necessity existed for its alienation.

The trial court decreed the injunction, holding the *property* ancestral and the proposed sale unjustified. On appeal, the Additional District Judge reversed that decree, relying on *Jujhar Singh v. Talok Singh* , which held that a coparcener cannot maintain a suit to restrain

a *karta* from alienating coparcenary *property* . The High Court summarily dismissed a second appeal. The present special-leave appeal by the sons challenges those appellate findings.

Legal Issues Presented

1. Whether a coparcener can maintain a suit for a permanent injunction restraining the *karta* of a joint Hindu family from alienating coparcenary *property* pursuant to an existing agreement to sell.
2. Whether Sections 38 and 41(h) of the Specific Relief Act, 1963 bar such injunctive relief when the coparcener has an alternative remedy of challenging the alienation after completion.

Arguments of the Parties

Appellants' Arguments (Sons/Coparceners)

- A coparcener has an interest equal to that of the *karta* in ancestral *property* and should not be required to wait until an invalid sale is completed before seeking relief.
- Because the proposed sale lacked legal necessity or family benefit, the sons were entitled to a *quia timet* injunction to prevent dissipation of family assets.
- In cases involving waste, courts have recognised injunctive relief against a *karta* ; therefore, a blanket rule of non-maintainability is improper.

Respondents' Arguments (Legal representatives of Jai Bhagwan & Ram Parkash)

- The Specific Relief Act bars an injunction when an equally efficacious remedy—setting aside the alienation after completion—exists (Section 41(h)).
- Under *Jujhar Singh v. Talok Singh* , a coparcener's sole remedy is to impeach the alienation after it occurs; no right exists to interdict a proposed sale.
- Ram Parkash, as *karta* , disclosed family necessity (education and marriage expenses, low rental income) justifying the proposed sale.

Table of Precedents Cited

Precedent	Rule or Principle Cited For	Application by the Court
<i>Shiv Kumar v. Mool Chand</i> , AIR 1972 P&H 147	Held that a coparcener could sue for an injunction restraining the <i>karta</i> from alienating family <i>property</i> .	Trial court relied on it, but Supreme Court noted it was overruled by later authority and declined to follow.

<i>Jujhar Singh v. Talok Singh</i> , AIR 1987 P&H 34	Declared that a coparcener cannot maintain a suit for permanent injunction against the <i>karta</i> ; remedy lies in challenging the alienation after completion.	Followed by the lower appellate court and expressly affirmed by the Supreme Court as laying down the correct law.
<i>Hunoomanpersaud Panday v. Babooee Munraj Koonweree</i> , (1856) 6 Moo I.A. 393 (PC)	The <i>karta</i> / manager may alienate joint <i>property</i> only for legal necessity or benefit of the estate; lender/purchaser must inquire into necessity.	Cited to delineate the limited but real powers of a <i>karta</i> and to explain the purchaser's risk if necessity is absent.
<i>Sudarsanam Maistri v. Narasimhulu Maistri</i> , ILR 1902 25 Mad 149	Described the corporate nature of a joint Hindu family and its <i>property</i> .	Quoted in the concurring opinion to elucidate the structure of a Mitakshara joint family.
<i>Bhagwan Dayal v. Reoti Devi</i> , AIR 1962 SC 287	Approved the Madras decision's exposition of joint family <i>property</i> .	Referred to reinforce the understanding of family structure and <i>property</i> ownership.
<i>Gansavant Balsavant v. Narayan Dhond Savant</i> , ILR 1883 7 Bom 467	Cited historically on joint family as a corporate body.	Mentioned in scholarly discussion; not central to the ratio but supports the family- corporation concept.

Court's Reasoning and Analysis

The Court began by reaffirming traditional Mitakshara principles: a *karta* may alienate coparcenary *property* only for legal necessity, benefit of estate, or to discharge antecedent debts. Nevertheless, Section 38 of the Specific Relief Act allows a perpetual injunction only where damages are inadequate and no efficacious alternative remedy exists. Section 41(h) specifically bars injunctions when another adequate remedy is available.

Applying those provisions, the Court held that a coparcener can later sue to set aside an unjustified alienation and recover the *property* ; this constitutes an efficacious remedy, rendering injunctive relief impermissible. Recognising such suits for injunction would disrupt family management: every proposed sale could be stalled pending lengthy litigation, thwarting genuine necessities.

The Court distinguished situations of waste or ouster, noting that an injunction might issue in such exceptional cases, but the present suit sought a “blanket” prohibition, permanently

preventing any sale — even one based on genuine necessity — thereby overreaching permissible relief.

The earlier single-judge ruling in *Shiv Kumar* was found inconsistent with the later Division Bench decision in *Jujhar Singh*. Endorsing the latter, the Court concluded that the sons' suit for permanent injunction was not maintainable. The specific-performance suit had already been decreed in 1981, further undermining the appropriateness of injunctive relief.

Holding and Implications

Appeal Dismissed; judgment of the High Court affirmed.

Direct Effect: The sons' suit for permanent injunction is non-maintainable; Ram Parkash is not restrained from executing the sale, and the decree for specific performance in favour of Jai Bhagwan stands.

Broader Implications: The decision clarifies that under Hindu law and the Specific Relief Act, a coparcener cannot pre-emptively bar a *karta* from alienating coparcenary *property*; the appropriate remedy is to impeach the transaction after it is completed. No new precedent was set, but existing authority was reinforced.

JUDGMENT

B.C Ray, J.— The defendant-Respondent 1, Ram Parkash as Karta of Joint Hindu family executed on February 7, 1978 an agreement to sell the suit *property* bearing M.C.K No. 238/9, in Mohalla Qanungaon at Kaithal for a consideration of Rs 21,400 and he received a sum of Rs 5000 as earnest money. As Respondent 1 refused to execute the sale deed, Defendant 2, Jai Bhagwan instituted a Suit No. 570 of 1978 in the court of Sub-Judge, First Class, Kaithal for specific performance of the agreement to sell and in the alternative for a decree for recovery of Rs 10,000. In the said suit Appellants 1 and 2 and Respondent 11 who are the sons of defendant-Respondent 1 made an application for being impleaded. This application, however, was dismissed. Thereafter the three sons of Defendant 1 as plaintiffs instituted Civil Suit No. 31 of 1982 in the court of Sub-Judge, Second Class, Kaithal for permanent injunction stating inter alia that the said *property* was joint Hindu family coparcenary *property* of the plaintiffs and Defendant 1; that there was no legal necessity for sale of the *property* nor it was an act of good management to sell the same to Defendant 2 without the consent of the plaintiffs and without any legal necessity. It was, therefore, prayed that a decree for permanent injunction be passed in favour of the plaintiffs and against Defendant 1 restraining him from selling or alienating the *property* to Defendant 2 or to any other person and also restraining Defendant 2 from proceeding with the suit for specific performance pending in the civil court.

2. Defendant 2, Jai Bhagwan since deceased, filed a written statement stating inter alia that Defendant 1 disclosed that the suit *property* was owned by him and that he was in need of money for meeting the expenses of the family including the education expenses of the

children and also for the marriage of his daughters. It has also been pleaded that the house in question fetched a very low income from rent and as such Defendant 1 who has been residing in Delhi, did not think it profitable to keep the house. It has also been stated that the suit was not maintainable in law and the injunction as prayed for could not be granted.

3. The trial court after hearing the parties and considering the evidences on record held that the house *property* in question was the ancestral *property* of the joint Hindu Mitakshara family and Defendant 1 who is the father of the plaintiffs was not competent to sell the same except for legal necessity or for the benefit of the estate. Since the plaintiffs' application for impleading them as party in the suit for specific performance of contract of sale, was dismissed the filing of the present suit was the only remedy available to the plaintiffs. The plaintiffs being coparceners having interest in the *property*, the suit in the present form is maintainable. The trial court further held that:

“It is well-settled law that karta of the joint Hindu family cannot alienate the coparcenary *property* without legal necessity and coparcener has right to restrain the karta from alienating the coparcenary *property* if the sale is without legal necessity and is not for the benefit of the estate. This view of mine is supported by case title Shiv Kumar v. Mool Chand [AIR 1972 P&H 147](#), 1971 Cur LJ 1020 thus, the proposed sale is without any legal necessity and is not for the benefit of the estate, therefore the suit of the plaintiff is decreed with no orders as to costs.”

4. Against this judgment and decree the defendants, the legal representatives of the deceased Defendant 2, preferred an appeal being Civil Appeal No. 199/13 of 1984. The lower appellate court following the decision in Jujhar Singh v. Giani Talok Singh [AIR 1987 P&H 34](#), 1986 PLJ 346 held that a coparcener has no right to maintain a suit for permanent injunction restraining the Manager or karta from alienating the coparcenary *property* and the coparcener has the right only to challenge the alienation of the coparcenary *property* and recover back the *property* after alienation has come into being. The court of appeal below further held:

“That Ram Parkash, father of the plaintiffs and karta of the joint coparcenary *property* cannot be restrained by way of injunction from alienating the coparcenary *property* to Defendant 2. In consequent the appeal is accepted and the judgment and decree of the trial court under attack are set aside.”

5. Against this judgment and decree, the instant appeal on special leave has been preferred by the appellants i.e the sons of defendant-Respondent 1, the karta of the joint Hindu family.

6. In this appeal we are called upon to decide the only question whether a suit for permanent injunction restraining the karta of the joint Hindu family from alienating the house *property* belonging to the joint Hindu family in pursuance of the agreement to sell executed already in favour of the predecessor of the appellants, Jai Bhagwan, since

deceased, is maintainable. It is well settled that in a joint Hindu Mitakshara family, a son acquires by birth an interest equal to that of the father in ancestral *property*. The father by reason of his paternal relation and his position as the head of the family is its Manager and he is entitled to alienate joint family *property* so as to bind the interests of both adult and minor coparceners in the *property*, provided that the alienation is made for legal necessity or for the benefit of the estate or for meeting an antecedent debt. The power of the Manager of a joint Hindu family to alienate a joint Hindu family *property* is analogous to that of a Manager for an infant heir as observed by the Judicial Committee in [Hunoomanpersaud Panday v. Mussumat Babooee Munraj Koonweree](#) (1856) 6 Moo IA 393 (PC):

“The power of a Manager for an infant heir to charge ancestral estate by loan or mortgage, is, by the Hindu Law, a limited and qualified power, which can only be exercised rightly by the Manager in a case of need, or for the benefit of the estate. But where the charge is one that a prudent owner would make in order to benefit the estate, a bona fide lender is not affected by the precedent mismanagement of the estate. The actual pressure on the estate, the danger to be averted, or the benefit to be conferred, in the particular instance, or the criteria to be regarded. If that danger arises from any misconduct to which the lender has been a party, he cannot take advantage of his own wrong to support a charge in his favour against the heir, grounded on a necessity which his own wrong has helped to cause.

A lender, however, in such circumstances, is bound to inquire into the necessities of the loan, and to satisfy himself as well as he can, with reference to the parties with whom he is dealing, that the Manager is acting in the particular instance for the benefit of the estate. If he does inquire, and acts honestly, the real existence of an alleged and reasonably-credited necessity is not a condition precedent to the validity of his charge, which renders him bound to see to the application of the money.”

7. At the outset it is to be noticed that in a suit for permanent injunction under Section 38 of the **Specific Relief Act** by a coparcener against the father or Manager of the joint Hindu family *property*, an injunction cannot be granted as the coparcener has got equally efficacious remedy to get the sale set aside and recover possession of the *property*. Sub-section (h) of Section 41 of **Specific Relief Act** bars the grant of such an injunction in the suit. Secondly, the plaintiff- respondents brought this suit for permanent injunction restraining their father, Defendant 1, from selling or alienating the *property* to Defendant 2 or any other person and also restraining Defendant 2 from proceeding with the suit for specific performance of the agreement to sell pending in the civil court. Thus the relief sought for is to restrain by permanent injunction the karta of the joint Hindu Mitakshara family i.e Defendant 1 from selling or alienating the house *property* in question. Defendant 1 as karta of the joint Hindu family has undoubtedly, the power to alienate the joint family *property* for legal necessity or for the benefit of the estate as well as for meeting antecedent debts. The grant of such a relief will have the effect of preventing the

father permanently from selling or transferring the suit *property* belonging to the joint Hindu Undivided Family even if there is a genuine legal necessity for such transfer. If such a suit for injunction is held maintainable the effect will be that whenever the father as karta of the joint Hindu coparcenary *property* will propose to sell such *property* owing to a bona fide legal necessity, any coparcener may come up with such a suit for permanent injunction and the father will not be able to sell the *property* for legal necessity until and unless that suit is decided.

8. The judgment in Shiv Kumar Mool Chand Arora v. Mool Chand Jaswant Ram Arora [AIR 1972 P&H 147](#), 1971 Cur LJ 1020 wherein it was held that a suit for permanent injunction against the father to restrain him from alienating the joint Hindu family *property* was maintainable has been offset by the Division Bench in Jujhar Singh v. Giani Talok Singh [AIR 1987 P&H 34](#), 1986 PLJ 346 wherein it has been held that a suit for permanent injunction by a coparcener against the father for restraining him from alienating the house *property* belonging to the joint Hindu family for legal necessity was not maintainable because the coparcener had got the remedy of challenging the sale and getting it set aside in a suit subsequent to the completion of the sale. Following this decision the High Court allowed the appeal holding that the suit was not maintainable reversing the judgment and decree of the trial court. We do not find any infirmity in the findings arrived at by the High Court.

9. It has, however, been submitted on behalf of the appellant that the High Court should have held that in appropriate cases where there are acts of waste, a suit for permanent injunction may be brought against the karta of the joint Hindu family to restrain him from alienating the *property* of the joint Hindu family. This question is not required to be considered as we have already held that the instant suit for injunction as framed is not maintainable. We, of course, make it clear that in case of waste or ouster an injunction may be granted against the Manager of the joint Hindu family at the instance of the coparcener. But nonetheless a blanket injunction restraining permanently from alienating the *property* of the joint Hindu family even in the case of legal necessity, cannot be granted. It further appears that Defendant 1, Ram Parkash entered into the agreement of sale stating that he is the owner of the suit *property*. The plaintiff-appellants claim the suit *property* as ancestral *property* and they as coparceners of joint Hindu Mitakshara family have equal shares with their father in the suit *property*. The question whether the suit *property* is the self-acquired *property* of the father or it is the ancestral *property* has to be decided before granting any relief. The suit being one for permanent injunction, this question cannot be gone into and decided. It is also pertinent to note in this connection that the case of specific performance of agreement of sale bearing Suit No. 570 of 1978 had already been decreed on May 11, 1981 by the Sub-Judge, First Class, Kaithal.

10. For the reasons aforesaid we affirm the judgment and decree made by the High Court and dismiss the appeal without any order as to costs.

K. Jagannatha Shetty, J. (concurring)— I agree that this appeal should be dismissed but I add a few words of my own. The question raised in the appeal is whether interference of

the court could be sought by a coparcener to interdict the karta of Hindu undivided family from alienating coparcenary *property*. The question is of considerable importance and there seems to be but little authority in decided cases.

12. The facts of the case lie in a narrow compass. In February 1978, Ram Parkash entered into an agreement for sale of certain house *property* in favour of Jai Bhagwan. The *property* has been described in the agreement as self-acquired *property* of Ram Parkash. It was agreed to be sold for Rs 21,400. Jai Bhagwan paid Rs 5000 as earnest money on the date of agreement. He promised to pay the balance on the date of execution of the sale deed. Ram Parkash, however, did not keep up his promise. He did not execute the sale deed though called upon to do so. Jai Bhagwan instituted a suit for specific performance of the agreement. In that suit, Rakesh Kumar and his brothers who are the sons of Ram Parkash wanted to be impleaded as parties to the suit. They wanted to resist the suit for specific performance. But the court did not permit them. The court said that they were unnecessary parties to the suit. Being unsuccessful in that attempt, they instituted a suit for permanent injunction against their father. They wanted the court to restrain their father from alienating the house *property* to Jai Bhagwan, or to anybody else. Their case was that the said house was their coparcenary *property* and the proposed sale was neither for legal necessity nor for the benefit of the joint family estate.

13. The suit for injunction was practically tried as a suit for declaration. A lot of evidence was adduced on various issues including the nature of the suit *property*. The trial court ultimately decreed the suit with the following findings: The suit *property* was coparcenary *property* of the joint family consisting of Ram Parkash and his sons. Jai Bhagwan has failed to prove that the proposed sale was for legal necessity of the joint family. He has also failed to prove that the intended sale was for benefit of the estate. Ram Parkash being the manager of the family cannot alienate coparcenary *property* in the absence of those two requirements. The sons could restrain their father from alienating the coparcenary *property* since the proposed sale was without justification.

14. Jai Bhagwan died during the pendency of the suit. His wife and children challenged the decree of the trial court in an appeal before the Additional District Judge, Kurukshetra. By then, the Punjab and Haryana High Court had declared in Jujhar Singh v. Giani Talok Singh [AIR 1987 P&H 34](#), 1986 PLJ 346 that a suit for injunction to restrain karta from alienating coparcenary *property* is not maintainable. The learned District Judge following the said decision reversed the decree of the trial court and dismissed the suit. The plaintiff preferred second appeal which was summarily dismissed by the High Court.

15. The plaintiffs, by special leave, have appealed to this Court. The arguments for the appellants appear to be attractive and are as follows:

“There is no presumption under law that the alienation of joint family *property* made by karta is valid. The karta has no arbitrary power to alienate joint family *property*. He could do so only for legal necessity or for family benefit. When both the requirements are wanting in the case, the coparceners need not vainly wait till the transaction is completed

to their detriment. They are entitled to a share in the suit *property*. They are interested in preserving the *property* for the family. They could, therefore, legitimately move the court for an action against the karta in the nature of a *quia timet*.”

16. As a preliminary to the consideration of the question urged, it will be necessary to examine the structure of joint Hindu family, its incidents and the power of karta or Manager thereof. The status of the undivided Hindu family or the coparcenary is apparently too familiar to everyone to require discussion. I may, however, refer in laconic details what is just necessary for determining the question urged in this appeal.

Joint Hindu Family

17. Those who are of individualistic attitude and separate ownership may find it hard to understand the significance of a Hindu joint family and joint *property*. But it is there from the ancient time perhaps, as a social necessity. A Hindu joint family consists of male members descended lineally from a common male ancestor, together with their mothers, wives or widows and unmarried daughters. They are bound together by the fundamental principle of sapindaship or family relationship which is the essential feature of the institution. The cord that knits the members of the family is not *property* but the relationship of one another.

18. The coparcenary consists of only those persons who have taken by birth an interest in the *property* of the holder and who can enforce a partition whenever they like. It is a narrower body than joint family. It commences with a common ancestor and includes a holder of joint *property* and only those males in his male line who are not removed from him by more than three degrees. The reason why coparcenership is so limited is to be found in the tenet of the Hindu religion that only male descendants up to three degrees can offer spiritual ministrations to an ancestor. Only males can be coparceners. [See: Hindu Law by N.R Raghavachariar, 8th Edn., p. 202]

19. In an early case of the Madras High Court in *Sudarsanam Maistri v. Narasimhulu Maistri* [ILR \(1902\) 25 Mad 149](#) Bhashyam Ayyangar, J. made the following pregnant observations about the nature of the institution and its incidents at p. 154:

“The Mitakshara doctrine of joint family *property* is founded upon the existence of an undivided family, as a corporate body (*Gansavant Balsavant v. Narayan Dhond Savant* ILR (1883) 7 Bom 467 and *Mayne's Hindu Law and Usage*, 6th Edn., para 270) and the possession of *property* by such corporate body. The first requisite therefore is the family unit; and the possession by it of *property* is the second requisite. For the present purpose female members of the family may be left out for consideration and the conception of a Hindu family is a common male ancestor with his lineal descendants in the male line, and so long as that family is in its normal condition viz. the undivided state — it forms a corporate body. Such corporate body, with its heritage, is purely a creature of law and cannot be created by act of parties, save insofar that, by adoption, a stranger may be

affiliated as a member of that corporate family.”

20. Adverting to the nature of the *property* owned by such a family, learned Judge proceeded to state at p. 155:

“As regards the *property* of such family, the ‘unobstructed heritage’ devolving on such family, with its accretions, is owned by the family as a corporate body, and one or more branches of that family, each forming a corporate body within a larger corporate body, may possess separate ‘unobstructed heritage’ which, with its accretions, may be exclusively owned by such branch as a corporate body.”

21. This statement of law has been approved by the Supreme Court in Bhagwan Dayal v. Reoti Devi [AIR 1962 SC 287](#), (1962) 3 SCR 440.

Managing Member and his Powers

22. In a Hindu family, the karta or Manager occupies a unique position. It is not as if anybody could become Manager of a joint Hindu family. “As a general rule, the father of a family, if alive, and in his absence the senior member of the family, is alone entitled to manage the joint family *property* .” The Manager occupies a position superior to other members. He has greater rights and duties. He must look after the family interests. He is entitled to possession of the entire joint estate. He is also entitled to manage the family properties. In other words, the actual possession and management of the joint family *property* must vest in him. He may consult the members of the family and if necessary take their consent to his action but he is not answerable to every one of them.

23. The legal position of karta or Manager has been succinctly summarised in the Mayne's Hindu Law (12th Edn., para 318) thus:

“318. Manager's legal position.— The position of a karta or manager is *sui generis*; the relation between him and the other members of the family is not that of principal and agent, or of partners. It is more like that of a trustee and cestui que trust. But the fiduciary relationship does not involve all the duties which are imposed upon trustees.”

24. The managing member or karta has not only the power to manage but also power to alienate joint family *property* . The alienation may be either for family necessity or for the benefit of the estate. Such alienation would bind the interests of all the undivided members of the family whether they are adults or minors. The oft-quoted decision in this aspect, is that of the Privy Council in [Hunoomanpersaud v. Babooee](#) (1856) 6 Moo IA 393 (PC). There it was observed at p. 423: “That power of the manager for an infant heir to charge an estate not his own is, under the Hindu law, a limited and qualified power. It can only be exercised rightly in case of need, or for the benefit of the estate.” This case was that of a mother, managing as guardian for an infant heir. A father who happens to be the Manager of an undivided Hindu family certainly has greater powers to which I will refer a little later. Any other manager however, is not having anything less than those stated in the said

case. Therefore, it has been repeatedly held that the principles laid down in that case apply equally to a father or other coparcener who manages the joint family estate.

Remedies against Alienations

25. Although the power of disposition of joint family *property* has been conceded to the Manager of joint Hindu family for the reasons aforesaid, the law raises no presumption as to the validity of his transactions. His acts could be questioned in the court of law. The other members of the family have a right to have the transaction declared void, if not justified. When an alienation is challenged as being unjustified or illegal it would be for the alienee to prove that there was legal necessity in fact or that he made proper and bona fide enquiry as to the existence of such necessity. It would be for the alienee to prove that he did all that was reasonable to satisfy himself as to the existence of such necessity. If the alienation is found to be unjustified, then it would be declared void. Such alienations would be void except to the extent of Manager's share in Madras, Bombay and Central Provinces. The purchaser could get only the Manager's share. But in other provinces, the purchaser would not get even that much. The entire alienation would be void. [Mayne's Hindu Law, 11th Edn., para 396]

26. In the light of these principles, I may now examine the correctness of the contentions urged in this appeal. The submissions of Mr H.N Salve, as I understand, proceeded firstly on the premise that a coparcener has as much interest as that of karta in the coparcenary *property* . Second, the right of coparcener in respect of his share in the ancestral *property* would remain unimpaired, if the alienation is not for legal necessity or for the benefit of the estate. When these two rights, are preserved to a coparcener, why should he not prevent the karta from dissipating the ancestral *property* by moving the court? Why should he vainly wait till the purchaser gets title to the *property* ? This appears to be the line of reasoning adopted by the learned Counsel.

27. I do not think that these submissions are sound. It is true that a coparcener takes by birth an interest in the ancestral *property* , but he is not entitled to separate possession of the coparcenary estate. His rights are not independent of the control of the karta. It would be for the karta to consider the actual pressure on the joint family estate. It would be for him to foresee the danger to be averted. And it would be for him to examine as to how best the joint family estate could be beneficially put into use to subserve the interests of the family. A coparcener cannot interfere in these acts of management. Apart from that, a father-karta in addition to the aforesaid powers of alienation has also the special power to sell or mortgage ancestral *property* to discharge his antecedent debt which is not tainted with immorality. If there is no such need or benefit, the purchaser takes risk and the right and interest of coparcener will remain unimpaired in the alienated *property* . No doubt the law confers a right on the coparcener to challenge the alienation made by karta, but that right is not inclusive of the right to obstruct alienation. For the right to obstruct alienation could be considered as incidental to the right to challenge the alienation. These are two distinct rights. One is the right to claim a share in the joint family estate free from unnecessary and unwanted encumbrance. The other is a right to interfere with the act of

management of the joint family affairs. The coparcener cannot claim the latter right and indeed, he is not entitled to it. Therefore, he cannot move the court to grant relief by injunction restraining the karta from alienating the coparcenary *property* .

28. There is one more difficulty for the sustainability of the suit for injunction with which we are concerned. Temporary injunction can be granted under sub-section (1) of Section 37 of the **Specific Relief Act**, 1963. It is regulated by the **Code of Civil Procedure, 1908**. A decree for perpetual injunction is made under sub-section (2) of Section 37. Such an injunction can be granted upon the merits of the suit. The injunction would be to restrain the defendant perpetually from the commission of an act, which would be contrary to the rights of the plaintiff. Section 38 of the **Specific Relief Act** governs the grant of perpetual injunction and sub-section (3) thereof, reads:

When the defendant invades or threatens to invade the plaintiff's right to, or enjoyment of, *property* , the court may grant a perpetual injunction in the following cases, namely:

- (a) Where the defendant is trustee of the *property* for the plaintiff;
- (b) Where there exists no standard for ascertaining the actual damage caused or likely to be caused, by the invasion;
- (c) Where the invasion is such that compensation in money would not afford adequate relief;
- (d) Where the injunction is necessary to prevent a multiplicity of judicial proceedings.

29. The provisions of Section 38 to be read along with Section 41. Section 41 provides that an injunction cannot be granted in the cases falling under clauses (a) to (j). Clause (h) thereunder provides that an injunction cannot be granted when a party could obtain an efficacious relief by any other usual mode of proceeding (except in case of breach of trust). The coparcener has adequate remedy to impeach the alienation made by the karta. He cannot, therefore, move the court for an injunction restraining the karta from alienating the coparcenary *property* . It seems to me that the decision of the Punjab and Haryana High Court in Jujhar Singh v. Giani Talok Singh [AIR 1987 P&H 34](#), 1986 PLJ 346 has correctly laid down the law. There it was observed at p. 348:

“If it is held that such a suit would be competent the result would be that each time the manager or the karta wants to sell *property* , the coparcener would file a suit which may take number of years for its disposal. The legal necessity or the purpose of the proposed sale which may be of pressing and urgent nature, would in most cases be frustrated by the time the suit is disposed of. Legally speaking unless the alienation in fact is completed there would be no cause of action for any coparcener to maintain a suit because the right is only to challenge the alienation made and there is no right recognised in law to maintain a suit to prevent the proposed sale. The principle that an injunction can be granted for

preventing waste by a manager or karta obviously would not be applicable to such a suit because the proposed alienation for an alleged need of the benefit of the estate cannot be said to be an act of waste by any stretch of reasoning. We are, therefore, of the considered view that a coparcener has no right to maintain a suit for permanent injunction restraining the manager or the karta from alienating the coparcenary *property* and his right is only to challenge the same and to recover the *property* after it has come into being.”

30. From the above discussion of the principles of Hindu Law and in the light of the provisions of the **Specific Relief Act**, I think, therefore, there ought to be no hesitation on my part to dismiss this appeal and I dismiss the same with cost.